Business Law (International)

Week 4 — Intellectual Property, Part 1: Foundations

SKEMA Global BBA · Year 2 · 2026/27

BUSINESS SCHOOL

SKEMA

Four parts, in the order a lawyer works through a file

1. **Who has the Right**
   Which kind of legal protection could cover the asset, and whether that protection exists
2. **Who is the Owner**
   Who owns the right: the company, the employee or the freelancer
3. **How Far does Protection Go?**
   Where the right works, what it stops, and what a court can order
4. **Redraft the clause**
   The four contract clauses that prevent the dispute, and how each clause fails

Blocks C and D ask the same four questions about your own company's file.

QUESTION Take a side: "If you built it and paid for it, you own it." Agree or disagree? The last slide asks again.

Brivane paid for four years of work, and a former engineer now sells a copy

What happened

Brivane is a small company that makes acoustic sensors. Brivane spent four years and most of its money perfecting one sensor. The work produced design drawings, test data and a calibration process that the team calls “the recipe”. Brivane never applied for a patent, a legal right over an invention that a government office grants. Brivane kept every file on a shared drive that every employee could open.

What happened next

Aiko Tanaka was Brivane's best engineer. Aiko resigned in the spring. Her employment contract said nothing about what she could do after leaving. Four months later, Aiko's new company launched a sensor called Sonaris. Sonaris is almost identical to Brivane's sensor and sells for two-thirds of the price.

Aiko's lawyer says

“Everything Aiko built lives in Aiko's head. Brivane applied for no patent and locked nothing away. Copying something that nobody protected is competition, not theft.”

Brivane's lawyer says

“Brivane paid for every hour in which that sensor was invented. If paid work can walk out of the door on a Friday, no company will pay for the first year.”

QUESTION The two lawyers agree on every fact. **What exactly are the two lawyers disagreeing about?**

Five real disputes.
The court never ask who worked the hardest

Trade secret · Rippling v Deel · March 2025
A trade secret is valuable information that a company keeps secret on purpose. Rippling sued its rival Deel in California. Rippling says an employee passed Rippling's sales information to Deel. Rippling caught the employee with a fake Slack channel.

Trade mark · Thatchers v Aldi · January 2025
A trade mark is a registered sign that tells buyers who made the goods. Thatchers registered the look of its lemon cider can. The Court of Appeal ruled that Aldi's similar can took unfair advantage of that mark: Aldi profited from the reputation that Thatchers had built.

Copyright · Ed Sheeran · November 2024

Copyright protects original music, text, images and code from copying. A company holding part of the rights in Marvin Gaye's "Let's Get It On" sued Ed Sheeran. The appeals court ruled that a common chord progression belongs to nobody.

Patent · Masimo v US Customs · August 2025
A US trade court banned imports of some Apple watches in 2023, because the watches used Masimo's patented technology. Apple moved one calculation to the iPhone. US Customs then let the watches in, and Masimo sued US Customs.

Trade mark · Iceland v Iceland · July 2025
Iceland Foods, a UK supermarket, held the EU trade mark "Iceland". The country of Iceland challenged the mark. The EU General Court cancelled the mark, because a country's name tells buyers where goods come from.

What the five have in common
In every dispute, each company held exactly what its registrations and contracts gave it. Hard work alone gave each company nothing.

Part 1 · Who has the Right

Part 1
Who has the Right
Which kind of legal protection could cover the asset, and whether that protection exists

Part 2
Who is the Owner
Who owns the right: the company, the employee or the freelancer

Part 3
How Far does Protection Go?
Where the right works, what it stops, and what a court can order

Part 4
Redraft the clause
The four contract clauses that prevent the dispute, and how each clause fails

An IP right lets its owner stop other people, for a limited time, in one country

An **intellectual property right** (IP right) is a legal ownership right over a creation.
The law of one country grants the power. The owner uses the power to stop other people copying, making, selling or using the creation.

WHO	OWES WHAT	TO WHOM	IF NOT
Everyone except the owner of the IP right	must not copy, make, sell or use the protected creation without permission	the owner, in the country that granted the right	The owner can ask a court to stop the copying and to award money.

Three limits on every IP right

The right ends after a fixed time: a patent lasts about 20 years. The right covers only what the law defines. The right exists only in the country that granted it.

What an IP right does not do

Nobody owns an idea. No government watches for copying on the owner's behalf. If the owner does nothing, nothing happens.

Example · Masimo and Apple

In 2023 the US International Trade Commission ruled that some Apple watches used Masimo's patented technology. The Commission banned imports of those watches.

What goes wrong without this rule

A company that believes it owns everything it built sues on a right that does not exist, and loses.

QUESTION The five companies in the news all worked hard. Did any company get more than its paperwork gave it?

The IP bargain: society grants a monopoly, and the creator gives society the creation

A **monopoly** is the power to be the only seller of something. Society grants the creator a monopoly for a limited time. In return, the creator gives society the creation. A patent owner must also publish how the invention works. Lawyers call this exchange **the IP bargain**.

Example · Grenat Batteries (fictional)
Grenat patented its battery electrolyte in three countries. The law required Grenat to publish the recipe. A rival read the patent and changed one ingredient. The rival now sells a competing battery legally. Grenat's patent worked as the law intends.

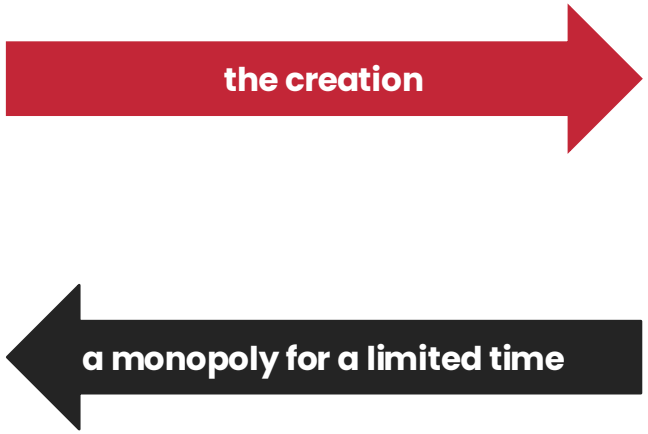
Example · Kaze Energy (fictional)
Kaze chose not to apply for a patent on its pellet recipe. Kaze never had to publish the recipe. In return, Kaze had to guard the recipe every day. The law gives Kaze nothing against a rival who works out the recipe alone.

What goes wrong without this rule
A founder cannot have a patent and total secrecy together. A patent application publishes the invention. A secret stays protected only while the founder publishes nothing.

The IP bargain

THE CREATOR

The creator gives the creation to the public. A patent owner also publishes how the invention works.



EVERYONE ELSE

The public receives the creation. Nobody else may copy, make, sell or use it without the owner's permission until the right ends.

The monopoly has three limits. It ends after a fixed time. It covers only what the law defines. It exists only in the countrythat granted it.

Five kinds of IP right protect five different things

Kind of right	What the right protects	How the owner gets it · how long it lasts	What the right stops · what it does not stop
Patent	A new technical invention: a product, a process or a formula	The owner applies to a patent office in each country. The invention must be new and not obvious. About 20 years.	Stops everyone, even a rival who invents the same thing alone. Does not stop a product outside the patent's wording.
Trade mark	A name, logo, colour or package design that shows who made the goods	Registered in each country, for each type of product. The sign must be **distinctive**: buyers read it as a brand, not a description. Renewable while in use.	Stops a sign that confuses buyers about who made the goods. Does not stop the same product under a different name.
Copyright	Original text, software code, images, music and film	The author owns it as soon as the work exists. No register, no fee. The author's life plus 70 years in the EU, UK and US.	Stops copying only. Does not protect an idea, a style or a chord progression.
Design right	The appearance of a product: its shape, pattern or decoration	The owner registers the design in each country while the design is still new. Up to 25 years.	Stops products that look the same overall. Does not protect how the product works.
Trade secret	Valuable information kept secret: a recipe, a process, a customer list	No register, no time limit. The information must stay secret, be valuable because secret, and be guarded.	Stops theft and breaches of trust. Does not stop a rival who works it out alone.

A patent office grants a patent only for an invention that is new on the day the company applies

An invention must pass three tests. The invention must be **new**: nobody has shown it in public anywhere. The invention must **not be obvious** to an expert. Industry must be **able to use it**.
The patent covers the invention only as its **claims** describe it. The claims are the numbered sentences at the end of the patent.

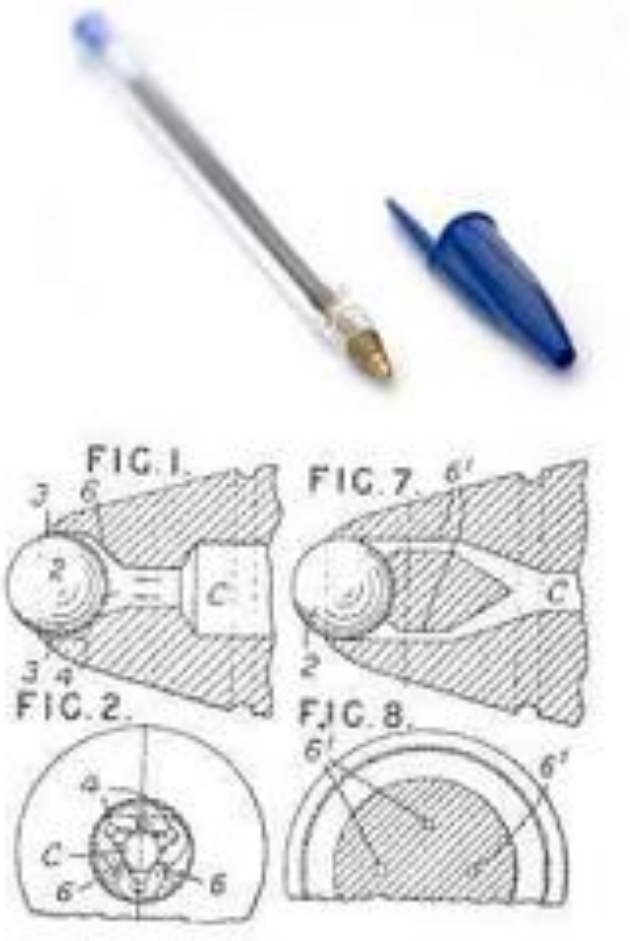
WHO	OWES WHAT	TO WHOM	IF NOT
Everyone except the patent owner	must not make, use, sell or import the invention described in the claims	the patent owner, in each country that granted the patent	The owner can ask a court or a trade body to stop the sales and award money.

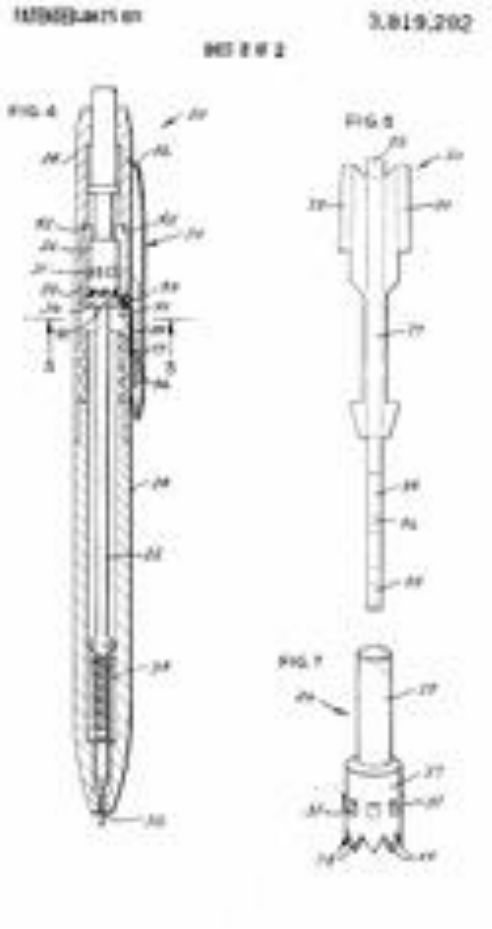
The company's own publicity counts
A company may show a prototype at a trade fair before applying. In Europe, that trade fair makes the invention no longer new, and the company loses its own patent. The United States gives inventors 12 months of grace.

An NDA protects a future patent
A **non-disclosure agreement (NDA)** is a contract in which one side promises to keep information secret. A demonstration under an NDA does not count as public. An NDA therefore protects a future patent as well as a secret.

QUESTION Brivane showed its sensor at trade fairs for two years. Can Brivane still apply for a patent in Europe?

A patent





http://www.ipwatchdog.com/2014/12/10/the-evolution-of-modern-ballpoint-pen-a-patent-history/id=52550/

A trade mark protects the sign that tells buyers who made the goods, not the goods themselves

A business registers a sign as its **trade mark**: a word, a logo, a colour or a package design. A registry refuses a sign that only describes the goods or where the goods come from.
A court asks whether ordinary buyers are likely to mix up two signs.
Lawyers call this test the **likelihood of confusion**.

WHO	OWES WHAT	TO WHOM	IF NOT
Other traders	must not use a sign that confuses buyers about who made the goods	the owner of the registered trade mark, in that country	A court can order the trader to stop using the sign and to pay money.

Example · Iceland v Iceland
Iceland Foods applied for the EU trade mark "Iceland" in 2013. The country of Iceland challenged the mark in 2018. On 16 July 2025 the EU General Court cancelled the mark. The court said that shoppers could believe the frozen food came from Iceland.

Example · Thatchers v Aldi
Thatchers registered the design of its lemon cider can. The High Court found no likelihood of confusion with Aldi's can. The Court of Appeal protected Thatchers anyway. A court protects a well-known mark when a rival takes **unfair advantage** of the mark's reputation.

QUESTION Aldi says that its customers know what they are buying. If nobody is confused, what did Aldi take?

Is there a Trademark Issue?











Is the Drycleaner infringing on the In-N-Out Burger Logo?









Copyright automatically prevents copying… but copyright never protects an idea

Copyright protects an original work: text, software code, a photograph, a song or a film. The author owns the copyright from the momentthe work exists. The author needs no register, no fee and no © symbol. Copyright protects the author's actual expression. Copyright never protects the idea, the method or the style behind the work.

WHO	OWES WHAT	TO WHOM	IF NOT
Everyone except the copyright owner	must not copy the work, or a large part of it, without permission	the copyright owner	The owner can ask a court to stop the copying and award money. A person who created a similar work alone owes nothing.

Example · Ed Sheeran

Structured Asset Sales owns part of the rights in Marvin Gaye's "Let's Get It On" (1973). The company said that Ed Sheeran's "Thinking Out Loud" (2014) copied its chord progression. On 1 November 2024 a US appeals court rejected the claim. Songwriters had used the same progression at least 29 times before 1973.

How a claimant proves copying

The claimant shows that the defendant had access to the work. The claimant shows that the two works are very similar in their protected expression. Copied mistakes, such as a typing error in code, prove copying.

QUESTION Brivane owns the copyright in its drawings. Does that copyright stop Sonaris, if Aiko made new drawings?

A company must register a design while the design is new, and must guard a trade secret every day

Design right · the rule

A **design right** protects the appearance of a product, not how the product works. The owner registers the design while it is still new. In the EU the owner has 12 months after the first sale to register. A registered design stops products that look the same overall, even without proof of copying.

Design right · Birkenstock

In February 2025 Germany's Federal Court of Justice ruled that Birkenstock sandals are not works of art. Copyright therefore could not stop lookalike sandals. Birkenstock had never registered the designs while the designs were new.

Trade secret · the rule

Information is a **trade secret** if it meets three conditions. The information is secret. The information is valuable because it is secret. The owner takes reasonable steps to keep it secret, such as locked files and NDAs. Courts decide most cases on the third condition.

Trade secret · Rippling

Rippling says that an employee passed Rippling's sales information to Deel. Rippling's lawyer wrote to three Deel executives about a new Slack channel. The employee searched for the channel at once. Rippling could show the leak because Rippling logged who opened each file.

QUESTION Brivane's recipe sat on a drive that every employee could open. Which of the three conditions fails?

Exercise 1 · Sort Brivane's six assets into the five kinds of right

Brivane's files list six assets. Brivane applied for no patent, registered nothing, and kept every file on a drive that every employee could open.

For each asset, discuss the kind of right that could protect it.

1. The design drawings
2. The test data
3. The calibration recipe
4. The technical method inside the sensor
5. The name “Brivane” printed on the sensor
6. The shape of the sensor's case

Work in your boards for three minutes. Write one line per asset: the kind of right, whether it exists, and the missing step if it does not.

Part 2 · Who is the Owner

Part 1	**Who has the Right**	Which kind of legal protection could cover the asset, and whether that protection exists
Part 2	**Who is the Owner**	Who owns the right: the company, the employee or the freelancer
Part 3	**How Far does Protection Go?**	Where the right works, what it stops, and what a court can order
Part 4	**Redraft the clause**	The four contract clauses that prevent the dispute, and how each clause fails

An employer usually owns what an employee creates for the job, but the route differs by country

In the UK and the US, the employer owns an employee's work for the job automatically. In France and Germany, ownership passes to the employer only through a written transfer or a procedure that the law sets. In every country the human author keeps **moral rights**: the right to be named as the author, and the right to object to distortion of the work.

WHO	OWES WHAT	TO WHOM	IF NOT
The employer	must follow the country's procedure to take ownership, and must pay compensation where the law requires it	the employee who created the work or invention	The employee may keep the invention, and may file a patent in the employee's own name.

Example · Aevum Robotics (fictional, Germany)
German law requires an employee to report an invention made at work. The employer must then claim the invention within a fixed time and pay the employee. Aevum's contract said only that all work results belong to Aevum. Aevum never ran the procedure. Aevum's engineer filed a patent in his own name.

The departure line
An employee's general skill and experience leave with the employee. The employer's records stay with the employer: drawings, data, a binder. The law separates what a person remembers from what a person takes.

QUESTION Aiko's skill left with her. Which of Brivane's records did Aiko have no right to take?

A freelancer owns what the freelancer creates, even after the client has paid

An **independent contractor** is a freelancer, an agency or an outside developer who is not an employee. The contractor owns what the contractor creates. Payment of the invoice does not transfer ownership. Delivery of the work does not transfer ownership. Only a signed document transfers ownership.

WHO	OWES WHAT	TO WHOM	IF NOT
The paying client	may use the work only for the purpose that both sides intended	the contractor, who still owns the work	The contractor can sell the same work to anyone else, including the client's rivals.

Example · Fenwick & Sons (fictional)
Fenwick, a bakery chain, paid a freelance developer £40,000 to build its ordering app. The contract said that the developer "will build the app for Fenwick". A year later the developer sold an almost identical app to a rival chain. Fenwick could not stop the sale.

Work made for hire · United States only
US law treats a short list of commissioned works as the client's property from the start. The client needs a signed document that uses the words "work made for hire". No such rule exists outside the United States.

QUESTION Fenwick paid £40,000. In one sentence, what did Fenwick buy?

A licence gives permission to use a work; an assignment transfers ownership of the work

A **licence** is a permission: the owner lets another business use the work, and the owner stays the owner. An **assignment** is a transfer: the owner hands ownership to another business.

	A licence	An assignment
Words that create it	"Full rights to use", "may exploit", "unlimited use", "will build for". These words all create a licence, however generous they sound.	"The creator hereby assigns all rights in the work, in all countries, for the full term." The document must be written and signed.
The tense of the verb	Not relevant	"Hereby assigns" transfers ownership now. "Shall assign" is only a promise to transfer later.
What the client can do afterwards	Use the work within the permission. The client cannot stop the owner licensing rivals, and usually cannot sue a copier.	Use, sell, license and register the work, and sue anyone who copies it.
What the creator keeps	Ownership, and the power to license rivals, to register the work and to ask for more money later	Moral rights only, in countries such as France and Germany

Pulse Health's contract said that Pulse "shall have full rights to use the Videos". Those words create a licence. The videographer still owns the films.

QUESTION Rewrite Fenwick's sentence so that Fenwick owns the app. Which words did you change?

A licence provides a structure for access; an agreement allows it’s use

A LICENCE

The creator keeps the keys.
The client may enter and use the work.
The creator can still let rivals in.
The creator can still register the work and sue.
The creator can ask for more money later.

AN AGREEMENT

The client now holds the keys.
The creator signed the words “hereby assigns”.
The client can use, sell, register and sue.
The creator keeps only moral rights,
in countries whose law makes them personal.

The payment and the delivered work are the same in both pictures. The words of the contract decide which picture applies.

France and Germany make the author the first owner; the UK and the US treat copyright as property

Author-centred countries · France, Germany
The human who created the work is always the first owner. A company becomes the owner only through a written transfer. The author keeps moral rights. A contract cannot remove moral rights. A contract can only set how the author uses them.

Property-centred countries · UK, United States
The law treats copyright as ordinary property. An employer owns an employee's work automatically. A client becomes the owner through a signed transfer. Moral rights are limited, and in the UK an author can give them up in writing.

Why the difference matters to a business
A French designer who signs a perfect transfer still keeps moral rights. A licence written in London for a Paris freelancer may transfer less than the London company believes. The creator's country usually decides the question.

What goes wrong without this rule
A company applies its own country's rule to a creator in another country. Years later, the company discovers that it holds a permission, not ownership.

QUESTION Pulse's videographer filmed in the UK. Would Pulse be better or worse off if she had filmed in France?

Exercise 2 · Name the owner in five situations

Who owns the work or the invention under the default rule.

Name the one document or step that would change the answer.

1. A software engineer employed by a London company writes the company's app during working hours.
2. A freelance photographer in Manchester is paid £2,000 to photograph a company's product catalogue. The client's email says “we need to use these everywhere”.
3. An engineer employed by a German machine maker invents a new gripper at work. The employer has never run the invention-reporting procedure.
4. A Paris agency designs a logo for a client. The agency's invoice says “creation and transfer of rights”. Nobody signed a transfer.
5. A company's marketing manager writes a novel at the weekend on her own laptop. The novel has nothing to do with her job.

Work in your boards for four minutes. Write two lines per situation: the owner, and the document that would change the answer.

Part 3 · How Far does Protection Go?

Part 1	**Who has the Right**	Which kind of legal protection could cover the asset, and whether that protection exists
Part 2	**Who is the Owner**	Who owns the right: the company, the employee or the freelancer
Part 3	**How Far does Protection Go?**	Where the right works, what it stops, and what a court can order
Part 4	**Redraft the clause**	The four contract clauses that prevent the dispute, and how each clause fails

Every IP right stops at a border, and no country grants a world patent or a global trade mark

Each country's law grants IP rights for that country only. A German patent gives its owner nothing in France. International treaties let a business file one application and extend it to many countries. Each country still examines, grants and enforces its own right.

WHO	OWES WHAT	TO WHOM	IF NOT
Each country's patent office or trade-mark registry	grants a right that applies only inside that country	the business that filed an application in that country	A business that never filed in a country holds no right there, and a rival may sell there freely.

First-to-file

In China and many other countries, the first person to register a trade mark owns it. Lawyers call this rule **first-to-file**. The register ignores years of use in other countries. A stranger who registers a brand first can block the real brand.

Example · Odessa Kaffee (fictional)

Odessa has sold coffee in Hamburg for twelve years. Odessa never filed in China. A stranger registered “Odessa Kaffee” in China two years ago. The stranger now offers to sell the name to Odessa for €90,000.

QUESTION Your company sells in three countries. In which of the three does your company own its name today?

Odessa Kaffee owns its name in one country and nowhere else

Germany

Odessa registered the name. Odessa owns it.

France

Nobody registered the name. Nobody owns it yet.

China

A stranger registered the name. The stranger owns it.

United States

Nobody registered the name. Nobody owns it yet.

Twelve years of sales in Hamburg created a right in Germany and in no other country. Each country keeps its own register.

PART 3 · WORKED EXAMPLE

Odessa can fight, buy or rebrand, and the cheapest option depends on one estimate

Option	What the option costs	How long it takes	What Odessa holds at the end
Fight	Foreign lawyers: **€40,000 (estimated)** One lost selling season: **€120,000 (estimated)** Total: **€160,000 (estimated)**	12 to 18 months, with no guarantee of winning	The name, if Odessa wins. Nothing, if Odessa loses. The launch date passes either way.
Buy	Asking price: €90,000 Lawyers for the transfer: **€5,000 (estimated)** Total: **€95,000 (estimated)**	2 to 4 weeks	The name, registered in Odessa's own name. The stranger is paid for doing nothing.
Rebrand	New name and packaging for China: **€60,000 (estimated)** A Chinese registration: **€1,500 (estimated)** Total: **€61,500 (estimated)**	6 to 10 weeks, with the filing on day one	A second brand that Odessa owns from the start. Twelve years of the Odessa name count for nothing in China.

Amber figures are estimates for teaching, not market data. The €90,000 asking price is a fact of the case. Change one estimate: if the lost season costs €300,000, the fight costs €340,000.

PART 3 · CONCEPT · LIMITS

Every right has limits: designing around a patent and creating something independently are both legal

Designing around a patent

A patent covers only what its claims describe. A rival may build a product that does the same job in a different way. Lawyers call this a **design-around**. Apple moved one calculation from the watch to the iPhone. US Customs accepted the change in August 2025, and Masimo is contesting that decision.

Example · Grenat Batteries (fictional)

Grenat's rival read the published patent and changed one ingredient. The rival's battery falls outside Grenat's claims. The rival also sells in a fourth country, where Grenat never filed. Both sales are legal.

Independent creation

Copyright stops copying. A trade secret stops taking. Neither right stops a rival who creates the same thing alone. The Ed Sheeran court treated a common chord progression as a building block that belongs to nobody.

What goes wrong without this rule

A company that sues on the wrong ground loses the case. The company pays the rival's legal costs. The rival learns exactly where the company's right ends.

QUESTION Suppose Aiko rebuilt the sensor from memory and took no files. Which right could Brivane use?

Only the owner can usually sue, and the most valuable remedy is an order to stop

Standing is the right to bring a claim in court. The owner of an IP right has standing. An exclusive licensee often has standing, if the licence says so. A business with an ordinary licence usually has no standing.

What a court can order

1 An **injunction**: an order to stop selling, importing or launching a product.
2 Money for the owner's loss, or the rival's profits.
3 Destruction of the copied goods.
4 An order to stop copied goods at the border.

Why the order to stop matters most

A rival who keeps selling wins customers every month. Money paid years later rarely wins those customers back. An import ban kept Apple's blood-oxygen feature out of the United States from December 2023 to August 2025.

Example · Pulse Health (fictional)

Pulse found eleven of its own videos inside a rival fitness app. Pulse holds only a licence, so Pulse has no standing to sue over copyright. The app licensed the films from their owner, the videographer.

QUESTION The import ban kept Apple's feature off the US market for about 20 months. What did the ban give Masimo that money could not?

Part 4 · Redraft the clause

Part 1	**Who has the Right**	Which kind of legal protection could cover the asset, and whether that protection exists
Part 2	**Who is the Owner**	Who owns the right: the company, the employee or the freelancer
Part 3	**How Far does Protection Go?**	Where the right works, what it stops, and what a court can order
Part 4	**Redraft the clause**	The four contract clauses that prevent the dispute, and how each clause fails

Four contract clauses prevent most IP disputes, and each clause fails in a predictable way

Clause	What the clause does	The strong version says	The weak version, and why it fails
Assignment	Moves ownership from the creator to the company	"The Creator hereby assigns to the Company all rights in the Deliverables, in all countries, for the full term." Signed.	"The Company shall have full rights to use the Deliverables." The words create a licence. Fenwick and Pulse both hold this weak version.
Confidentiality (NDA)	Keeps a secret protected in law as well as in fact	The clause lists what is confidential. The clause forbids disclosure and use. The clause requires records back, and lasts after the job ends.	"Employees shall not divulge company matters during their employment." Defines nothing, allows use, ends on the last day.
Licence	Gives permission to use, on stated terms	The clause states what the licensee may do, whether exclusive, where, for how long, who registers, and who may sue.	"Grants the right to use X." The clause says nothing about exclusivity, countries, registration or standing.
Background-IP list	Separates what each side owned before the deal from what the deal creates	Each side signs a list of what it already owns. Everything the deal creates belongs to the client.	"The developer's tools remain the developer's", with no list attached. The developer later decides where the line falls.

QUESTION Brivane's contract with Aiko had none of these clauses. Which single clause would have changed the dispute most?

A company must choose a patent or a secret

	A patent	A trade secret
Whom the right stops	Everyone, even an honest rival who invents the same thing alone	Only a person who takes the secret or breaks a promise of confidence. Never a rival who works it out alone.
How long the right lasts	About 20 years from filing. Then anyone may use the invention.	No time limit, as long as the information stays secret
What the company must do	Publish exactly how the invention works. Pay to file in every country that matters.	Guard the secret every day: locked files, NDAs, checks when employees leave. One leak ends the secret for ever.
Which assets suit it	Products that a rival could copy by taking the product apart	Recipes and processes that nobody can work out from the product itself

Kaze Energy never applied for a patent and never guarded its recipe properly. Brivane did the same. A company that makes neither choice has no protection at all.

QUESTION Your company has money for one kind of protection. Which kind do you choose, and what must your company then do every day?

Exercise 3 · Find the weak words in four clauses, then write the strong version

Each sentence below comes from a contract in this session's cases.
For each sentence, say which of the four clauses it tries to be.
Name the words that make it weak. Then rewrite it in one or two sentences.

1. Pulse Health: “Pulse shall have full rights to use the Videos in its services.”
2. Kaze Energy: “Employees shall not divulge company matters during their employment.”
3. Sahar AgriTech: “The Distributor shall register the Products with the relevant authorities as required for sale in the Territory.”
4. Aevum Robotics: “All results of the Employee's work shall belong to the Company.”

Work in your boards for six minutes. Write the actual words of your new clause, not a description of it. One board reads a clause aloud.

SUMMARY

Twelve terms from today, and the one sentence to remember

IP right: a legal power, granted by one country, to stop others copying, making, selling or using a creation

Patent: a right over a new invention, as its claims describe it; about 20 years; the invention is published

Trade mark: a registered sign that tells buyers who made the goods; registered country by country

Copyright: an automatic right in original text, code, images, music or film; stops copying only

Design right: a registered right in the appearance of a product

Trade secret: valuable information kept secret and guarded; no time limit

Licence: permission to use a work; the owner stays the owner

Assignment: a signed transfer of ownership: "hereby assigns"

Independent contractor: a freelancer or agency; owns what it creates unless a signed document transfers it

First-to-file: the first person to register a trade mark in a country owns it there

Design-around: a product that does the same job outside a patent's claims; legal

Injunction: a court order to stop selling, importing or launching

Take a side again: "If you built it and paid for it, you own it." Has your answer changed since slide 2?

Effort creates the asset. Only meeting the conditions, filing the applications and signing the right words create the legal right, and that right stops at the border of every country where the company did not file.